

C.C.R.B CASE CLOSING FORM

Investigator assigned: D. Lavinsky		Team: 8	CCRB#: 9803807	☒ Force ☐ Discourtesy ☒ Abuse ☐ O.L. ☒ Injury
Date of incident: 8/23/98	Time of incident: 6:30 PM	Location of incident: I/O § 87(2)(b)	Pct. of occurrence: 115	Date S.O.L. Expires: 2/23/00
Date reported: 8/27/98	Time reported: 9:05 PM	To whom/where/how reported: § 87(2)(b) reported his complaint to the CCRB by phone.		
Complainant: § 87(2)(b)		Home address: § 87(2)(b)		
Victim(s): § 87(2)(b)		Home address: § 87(2)(b)		
Witness(es): § 87(2)(b)		Home address: § 87(2)(b)		
Subject officer(s) (include rank): Sgt. Michael Barreto	Shield: 89	Tax: 901152	Command: 115	
Witness officer(s) (include rank): PO Richard Brodowski PO Philip Scarglato PO Christine Culhane	Shield: 22730 22248 20274	Tax: 895239 900632 917483	Command: 115 115 115	
Allegation(s) by letter: A. Abuse of Authority: Sgt. Barreto searched a closet inside the § 87(2)(b) apartment, in violation of PG 116-33. B. Abuse of Authority: Sgt. Barreto searched the § 87(2)(b) car, in violation of PG 116-33. C. Excessive Force: Unidentified officer(s) hit § 87(2)(g) on the left hip, in violation of PG 104-01.			Recommendation(s): § 87(2)(g) § 87(2)(g) § 87(2)(g)	

Synopsis

Following a domestic dispute, § 87(2)(b) was arrested and taken to the hospital, where he was admitted for psychiatric evaluation and diagnosed as intoxicated. No charges were filed in regard to the complainant's arrest, although he alleged that officers at the scene inflicted a bruise to his left thigh in an unspecified manner, in addition to searching areas of the couple's apartment and their car for a gun.

§ 87(2)(g)

ENCL.

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Summary of Complaint

§ 87(2)(b) complainant and victim in the above-referenced case, stated that on the evening of 8/23/98, inside of his apartment at § 87(2)(b) in Queens, the police arrived in response to a dispute he was having with his wife, § 87(2)(b) over the fact that she had gone to Atlantic City for two days without calling him. § 87(2)(b) by his own account, had been drinking that day, consuming approximately three 40 oz. bottles of beer; he acknowledged that he was intoxicated by the time officers arrived at the apartment, but that he had not physically harmed § 87(2)(b) in any way.

Two officers arrived and separated § 87(2)(b) from his wife, removing him into the hallway outside the apartment, where he sat down, yelling at his wife not to allow the officers to take him away. Two more officers appeared approximately 20 minutes later. § 87(2)(b) was told to sit on the floor and wait while his wife gathered her belongings so she could stay elsewhere that night.

During this time, according to § 87(2)(b) he repeatedly asked a female officer for water. He also, at some point, informed officers in Spanish that he owned a gun. A Spanish speaking officer then searched a closet in the apartment and the § 87(2)(b)'s car, finding nothing (although § 87(2)(b) himself saw none of this, remaining in the hallway for the entire time; he was later told as much by his wife). § 87(2)(b) denied ever possessing a firearm, explaining that he told officers this only because he was drunk. § 87(2)(b) added that he was eventually handcuffed.

§ 87(2)(b) explained that at some point while he was in the hallway, he sustained a bruise to his left thigh, but could say nothing about how this may have occurred or who was responsible except to say that he remembered feeling a blow to the leg. He recalled that he noticed the bruise to his thigh only after he was released from the hospital, and consequently never received medical attention in this regard. He did not see a private physician.

§ 87(2)(b) filed his complaint at the CCRB four days later. No charges were filed against him as a result of this incident.

Results of Investigation

The only civilian witness in this case is the complainant's wife, § 87(2)(b). She lives with § 87(2)(b) at § 87(2)(b) and on the day of the dispute called the police because her husband was drunk and "a little adversarial" over the fact that she had returned later than expected from a weekend in Atlantic City. Two officers—one male, the other female—met her in front of her building and, insisting that she sleep elsewhere that night, escorted her upstairs so that she could safely collect some belongings.

Once upstairs, more officers arrived at the scene, including one who spoke with § 87(2)(b) in Spanish. This officer, according to § 87(2)(b) seemed to be in charge, and asked her if her husband kept a gun in the house. § 87(2)(b) told the officer that her husband did not have a gun but, because he is a jealous man, had once threatened to buy one. The officer then asked § 87(2)(b) if he could "check the apartment" and her car for a gun, to which she consented; she retrieved the car keys (the car is registered in her name) and then signed the officer's memobook.

The officer in charge searched a closet in the apartment while the other officers remained with § 87(2)(b) in the hallway outside the apartment. § 87(2)(b) recalled that her husband was, by this point, already handcuffed, screaming at her not to leave him. Before long, the female officer closed the front

door of the apartment; from inside, § 87(2)(b) could hear a commotion and what sounded like someone running. When she tried to open the front door, the female officer firmly told her to remain inside the apartment. § 87(2)(b) did not see her husband again until after he was released from the hospital, at which time § 87(2)(b) showed her the bruise to his hip and claimed that it had been caused by the police.

A total of four Members of Service were involved in this incident: PO Philip Scarglato, PO Christine Culhane, PO Richard Brodowski, and Sgt. Michael Barreto.

POs Scarglato and Culhane, partners on the date of the incident, were the first officers to arrive at the scene, which came over the radio as a domestic dispute. The officers recalled meeting § 87(2)(b) in front of the building with § 87(2)(b). They escorted her upstairs to get some clothing so she could sleep elsewhere that night, leaving § 87(2)(b) alone outside. Before long, § 87(2)(b) followed the three into the apartment, acting distressed and irrational. PO Scarglato, realizing that § 87(2)(b) was emotionally disturbed and intoxicated, called for the patrol sergeant to respond to the scene. The sergeant arrived and directed officers to handcuff § 87(2)(b). PO Scarglato, asked if § 87(2)(b) ever fell to the ground, said that this was in fact that case, explaining that he fell "voluntarily," that § 87(2)(b) "just fell, just dropped to the ground" while handcuffed, citing this as the cause of the complainant's injuries. PO Culhane disputed her partner's account, saying instead that § 87(2)(b) remained seated in the hallway outside the apartment for most of the incident, with herself, PO Scarglato, and PO Brodowski nearby. Meanwhile, Sgt. Barreto searched the apartment for a gun, based on the fact that PO Culhane had told the sergeant that she had heard § 87(2)(b) use the word "pistola" when speaking to § 87(2)(b). She added that § 87(2)(b) was handcuffed after Sgt. Barreto arrived at the scene, and did not resist arrest, struggle, or throw himself to the floor. At no point during the incident did PO Culhane notice any injuries to the complainant, or hear him complain about his leg. She could not explain how § 87(2)(b) may have incurred an injury except to say that, before the two were separated, § 87(2)(b) had briefly tried to calm her husband down by sitting on top of him.

Sgt. Barreto and PO Brodowski responded to the scene following a request for supervision. Upon arrival, Sgt. Barreto instructed POs Scarglato and Culhane to remove § 87(2)(b)—obviously intoxicated—into the hallway outside the apartment so that he could speak with § 87(2)(b) alone. Sgt. Barreto, worried about § 87(2)(b)'s safety and following domestic violence procedures, asked her if § 87(2)(b) kept any firearms in the house. § 87(2)(b) informed him that he kept a gun in the closet and sometimes the car, providing consent for Sgt. Barreto to search these areas for a firearm. Sgt. Barreto added that he was particularly suspicious about a weapon because he heard § 87(2)(b) in the hallway yelling at his wife not to tell the officers anything, as if he were hiding something. Sgt. Barreto explained that when he walked out of the apartment after speaking with § 87(2)(b), he noticed § 87(2)(b) sitting on the floor, yelling at his wife. It was at this point that Sgt. Barreto instructed officers to handcuff § 87(2)(b) as an EDP, or emotionally disturbed person. Sgt. Barreto recalled that § 87(2)(b) was frisked and searched incidental to his arrest as an EDP, although Sgt. Barreto himself did not recall seeing this stage of the incident, confirming only that at no point did he see the complainant fall or throw himself to the floor. § 87(2)(b) was admitted to the hospital as a psychiatric patient. Sgt. Barreto stated that, to his knowledge, no charges were filed against § 87(2)(b) as a result of this incident. (PO Brodowski confirmed this account, except in his assertion to know nothing about any officer searching the § 87(2)(b)'s apartment or car, thereby contradicting Sgt. Barreto's assertion that PO Brodowski assisted him in searching the § 87(2)(b)'s car.)

The most significant documentation in this case are the medical records prepared for § 87(2)(b) on § 87(2)(b) when he was admitted to § 87(2)(b) as a psychiatric patient after officers

classified him as an EDP. At the hospital, § 87(2)(b) underwent a full psychiatric examination, answering numerous questions about his relationship with § 87(2)(b) and other aspects of his personal life. Neither the ambulance call report nor hospital records make note of any injuries to the complainant's leg or any other kind of trauma; instead, records document that § 87(2)(b) was intoxicated at the time of his admittance. Nevertheless, § 87(2)(b) provided two photographs taken shortly after the incident which show a large bruise to the left hip. Other evidence in this case includes a Domestic Incident Report prepared by PO Culhane, as well as her extensive memobook entry, both of which are consistent with the known facts of the case. The Domestic Incident Report documents that § 87(2)(b) was taken to the hospital as an EDP aided case, and that § 87(2)(b) wanted an Order of Protection at the time of the incident. The Domestic Incident Report also indicates that a complaint report was prepared, although a search of all arrests within the 115th Precinct on the date of occurrence reveals no evidence that § 87(2)(b) was ever formally charged with a crime. It should also be noted that § 87(2)(b)'s signature appears in Sgt. Barreto's memobook—evidence, according to both her and Sgt. Barreto, that she consented to the search of her premises and car.

Conclusions and Recommendations

§ 87(2)(g)
§ 87(2)(g) Sgt. Barreto searched a closet in the Sanchez apartment and later their car, remain unambiguous. Although § 87(2)(b) himself could not explain in any detail how or why officers became suspicious of his having a gun—he speculated that he told officers as much because he was drunk at the time—§ 87(2)(b) remembered Sgt. Barreto specifically asking if her husband kept a gun in the house, a fact which Sgt. Barreto confirmed in his own interview. He related that, fearing for § 87(2)(b)'s safety and following protocol in domestic abuse cases, he asked her if § 87(2)(b) had a gun in the apartment; § 87(2)(b) in her interview, claimed only that she suspected her husband might have a gun somewhere, not that she had actually seen one. In any case, she acknowledged providing consent for Sgt. Barreto to search a closet inside the apartment as well as her car (and provided Sgt. Barreto with car keys for this purpose). Sgt. Barreto § 87(2)(g) had § 87(2)(b) sign his memobook to document the fact that she provided consent for him to conduct the searches. § 87(2)(g)

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Note: It should be noted that while § 87(2)(b) was arrested as an EDP, which is technically an aided case, officers interviewed for this case maintained that he threatened himself and his wife. While § 87(2)(b) was unharmed, § 87(2)(b)'s behavior towards her was alarming enough that she asked for an Order of Protection as a result of this incident (as documented in the Domestic Incident Report). Other documents, such as the ambulance call report and medical records, confirm § 87(2)(b)'s threatening behavior; the ambulance call report, for instance, documents that § 87(2)(b) claimed that her husband had threatened her with a knife. Nevertheless, § 87(2)(b) herself was not injured, and did not claim in her CCRB interview that her husband actually threatened her, only that he was acting in an "adversarial" manner. § 87(2)(g)

Investigator: _____

Date: _____

Supervisor: _____

Date: _____

Reviewed by: _____

Date: _____

Reviewed by: _____

Date: _____